

Timeliness Show-Cause Order

Post-Riley question

On June 27, 2025, the court addresses the petition received February 13, thirty-one days after the Board's January 13 order. The court deferred the filing-time issue while the Supreme Court considered the character of Section 1252(b)(1). On June 26, *Riley v. Bondi* held that the thirty-day requirement is a nonjurisdictional claims-processing rule and explained that such a rule ordinarily must be timely invoked by the party it benefits.

The institutional respondent shall state by July 7 whether it invokes Section 1252(b)(1) against this petition. Any motion must identify the January 13 order, February 13 receipt, absence of an asserted alternate trigger, and the relief requested under *Riley*. This order does not enforce the rule on the court's initiative, determine that the respondent has forfeited it, or decide the CAT and record-composition questions presented by the petition.

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Petitioner response opportunity

A.R.M. may respond to any invocation motion through July 7, 2025. A response may address the date calculation, whether the respondent acted timely after Riley, and any preserved contention concerning enforcement. The existing papers disclose no tolling motion, reissued agency order, reopening, extension, or different receipt date; a party asserting another event must identify the supporting docket material rather than rely on argument alone.

The court will not dismiss the petition before the response period closes. Docket acceptance during the period does not establish that the petition was timely, and silence does not supply a merits ruling. If the respondent invokes the rule by the deadline, the court will decide that request after July 7. If it does not, the court will determine whether the show-cause inquiry should be discharged under Riley.

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Further proceedings held

Proceedings beyond the filing-time question remain held until the court enters a later order. The agency need not transmit a corrected record, and the parties need not brief CAT aggregation, acquiescence, or standard of review during this limited period. Existing docket materials will be preserved so that either dismissal or continued processing rests on the same January 13 and February 13 dates.

The clerk shall serve this order on counsel for A.R.M. and the institutional respondent on June 27, 2025. Any submission must be filed under the motion or response category and served electronically. A motion invoking the rule will not itself dismiss the case; dismissal requires a court disposition after the response period. Likewise, absence of a motion will not silently decide the issue; the court will enter an order discharging show cause before ordinary administration resumes.